

Puducherry Buildings (Lease and Rent Control) Act, 1969

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State of Puducherry - Act

Puducherry Buildings (Lease and Rent Control) Act, 1969

PUDUCHERRY

India

Puducherry Buildings (Lease and Rent Control) Act, 1969

Act 5 of 1969

Published on 1 August 1969

Commenced on 1 August 1969

[This is the version of this document from 1 August 1969.]

[Note: The original publication document is not available and this content could not be verified.]

Puducherry Buildings (Lease and Rent Control) Act, 1969

(Act No. 5 of 1969)

Last Updated 31st May, 2019

Statement of Objects and Reasons - Act 5 of 1969. - There has been a tendency to demand disproportionately high rent by the Landlords in the principal towns in the Union Territory of Puducherry. In order to see that the rights of the tenants are adequately safeguarded and also to see that public servants are provided with accommodation, the Government consider it necessary to control accommodation and rent. Accordingly, a bill has been drafted on the lines of the Madras Buildings (Lease and Rent Control) Act, 1960 which permits eviction of tenants only for proper reasons and also empowers the Controller to fix fair rents.

Statement of Objects and Reasons - Act 15 of 1970. - The object of this Bill is only to effect a minor correction in sub-section (1) of section 33 of the Puducherry Buildings (Lease and Rent Control) Act, 1969 (No.5 of 1969). The words

'in the Official Gazette" are proposed to be added after the word "notification" in that sub-section.

Statement of Objects and Reasons - Act 6 of 1972. - The Puducherry Buildings (Lease and Rent Control) Act, 1969 (No.5 of 1969) came into force on 1st August, 1969. Under sub-section (4) of section 1, the Act has validity only for a period of 3 years, i.e., upto 31st July, 1972. It is proposed to extend its life by a further period of 5 years.

The amendment Bill seeks to achieve the above object.

Statement of Objects and Reasons - Act 1 of 1977. - The Puducherry Buildings (Lease and Rent Control) Act, 1969 (No.5 of 1969) came into force on 1st August 1969. Under sub-section (4) of section 1, the Act had validity only for a period of 3 years i.e. upto 31.7.72. Hence an amendment to the Act was passed in 1972 extending the life of the Act for a further period of 5 years i.e. upto 31.7.77, it is proposed to extend its life by a further period of 3 years.

The amendment Bill seeks to achieve the above object.

Statement of Objects and Reasons - Act 8 of 1980. - The Puducherry Buildings (Lease and Rent Control) Act, 1969 was originally framed on the lines of the then existing Tamil Nadu Act with appropriate modifications to suit local conditions. After 1969, lots of changes took place in the concept of landlord-tenant relationship and also pronouncements in certain judgments of the High Court and the Supreme Court necessitated the amendment of the provisions of the Act, since these cases were with reference to the Tamil Nadu Act, the Tamil Nadu Government had already amended their Act in 1972-73. Meanwhile, this Administration also took steps to amend our Act to keep pace with case law development and also to make it conform to the latest thinking on the subject.

The amendments inter alia include provisions empowering the Authorised Officer to order repair of the rented buildings, increase of fair rent in view of the changed circumstances and also introduction of revised procedure in the calculation of rent, making it statutory for the landlord to issue a receipt for the actual amount of rent or advance received by him, providing legal protection to Service/ex-service personnel and the Government servants to get their rented houses vacated as expeditiously as possible and also to make further consequential amendments.

The duration of the original Act was only upto 31-7-1977, i.e., eight years from the commencement of the Act and subsequently extended upto 31-7-1980 by the Amendment Act of 1977 (No. 1 of 1977). It is now proposed to make it a permanent statute.

The draft Bill seeks to achieve the above objects.

Statement of Objects and Reasons - Act
10 of 1987

. - The Central Government has informed that the Officers of the Indian Railways face serious difficulties in getting their own houses vacated from tenants after their retirements and hence the Rent Control Law should provide for vacation of tenants occupying the houses of railway employees who desire to get their own houses to occupy after retirement. Clause (a) of sub-section (3B) of section 10 at present enables a landlord who, being a person in the occupation of any residential premises allotted to him by the Central Government or State Government or any local authority, is required to vacate such residential accommodation or to incur certain obligation on the ground that he owns in the Union territory of Puducherry a residential accommodation either in his own name or in the name of the members of his family to get a right to recover immediately the possession of any premises let out by him. It is necessary that such a right accrues also to the persons in the service of the Central or State Government or any local authority who want to recover possession of his residential building for his own occupation after retirement and such a provision will help the retired railway employees also. It is therefore proposed to amend clause (a) of sub-section (3B) of section 10 of the Puducherry Buildings (Lease and Rent Control) Act, 1969 for this purpose.

The Bill seeks to achieve the above object.

An Act to regulate the letting of residential and non-residential Buildings and the control of rents of such buildings and the prevention of unreasonable eviction of tenants therefrom in the Union territory of Puducherry.

Be it enacted by the Legislative Assembly of Puducherry in the Twentieth Year of the Republic of India as follows: -

1.
Short title, extent and commencement.
 - (1)
This Act may be called the Puducherry Buildings (Lease and Rent Control) Act, 1969.
 - (2)
It shall extend to the whole of the Union territory of Puducherry.
 - (3)

[It shall come into force on such date as the Government may, by notification in the Official Gazette, appoint:]

[The Act came into force from 1st August 1969, vide Extraordinary Gazette No. 88 dated 1-8-1969.]

Provided that different dates may be appointed for different provisions of this Act and for different areas and any reference in any such provision to the commencement of this Act shall be construed as a reference to the coming into force of that provision.

(4)

[Omitted]

[Omitted by Act No. 8 of 1980 and the Act came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

2.

Definitions.

- In the Act, unless the context otherwise requires, -

(1)

"accommodation appellate authority" means an officer appointed, by notification in the Official Gazette, to function as accommodation appellate authority under this Act;

(2)

"appellate authority" means an appellate authority appointed under subsection (1) of section 23;

(3)

"authorised officer" means any officer authorised by the Government under sub-section (1) of section 4;

(4)

"building" means any building or hut or part of a building or hut, let or to be let separately for residential or non-residential purpose and includes -

(a)

the garden, grounds and out-houses, if any, appurtenant to such building, hut or part of such building or hut and let or to be let along with such building or hut;

(b)

any furniture supplied by the landlord for use in such building or hut or part of a building or hut, but does not include a room in a hotel or boarding house;

(5)

["Controller" means any person appointed by the Government, by notification in the Official Gazette to exercise the powers and perform the functions of a Controller under this Act for such area as may be specified in the notification]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

;

(6)

"Government" means the Administrator of the Union territory appointed by the President under article 239 of the Constitution;

(7)

"landlord" includes the person who is receiving or is entitled to receive the rent of a building, whether on his own account or on behalf of any other or on behalf of himself and others or as an agent, trustee, executor, administrator, receiver or guardian or who would so receive the rent, or be entitled to receive the rent, if the building were let to a tenant;

Explanation. - A tenant who sub-lets shall be deemed to be a landlord within the meaning of this Act in relation to the sub-tenant.

[(7-a). "member of his family" in relation to a landlord means his spouse, and dependent children]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

;

(8)

"prescribed" means prescribed by rules made under this Act;

(9)

"repairs" means the restoration of a building to a sound or good state after decay or injury but does not include additions, improvements or alterations except in so far as they are necessary to carry out such restoration;

(10)

["tenant" means any person by whom or on whose account rent is payable for a building and includes the surviving

spouse, or any son, or daughter, or the legal representative of a deceased tenant who -

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

(i)

in the case of a residential building, had been living with the tenant in the building as a member of the tenant's family upto the death of the tenant, and

(ii)

in the case of a non-residential building, had been in continuous association with the tenant for the purpose of carrying on the business of the tenant upto the death of the tenant and continues to carry on such business thereafter, and a person continuing in possession after the termination of the tenancy in his favour, but does not include a person placed in occupation of a building by its tenant or a person to whom the collection of rents or fees in a public market, cart-stand or slaughter-house or of rents for shops has been farmed out or leased by Municipalities or Village or Commune Panchayats;]

(11)

"Union territory" means the Union territory of Puducherry.

3.

Act not to apply to certain premises.

- Nothing in this Act shall apply -

(a)

to any premises belonging to the Government; or

(b)

to any tenancy or other like relationship created by a grant from the Government in respect of the premises taken on lease or requisitioned, by the Government.

4.

Notice of vacancy.

(1)

(a)

(i)

Every landlord shall, within seven days after the building becomes vacant -

(A)

by his ceasing to occupy it, or

(B)

by the termination of the tenancy, or

(C)

by eviction of tenant or

(D)

Where any such building has been requisitioned under any law for the time being in force other than this Act, by release from such requisition, give notice of the vacancy in writing to the officer authorised in that behalf by the Government.

(ii)

Every tenant shall, within seven days after the building becomes vacant, by his ceasing to occupy it or by the termination of his tenancy give notice of the vacancy in writing to the officer authorised in that behalf by the Government.

Explanation I. - A Landlord who, having obtained possession -

(i)

of a residential building under sub-section (3) of section 10 lets the [whole or part]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

or part of it to a tenant,

(ii)

of a non-residential building under sub-section (3) of section 10 lets the whole or part of it to a tenant, shall be deemed to have failed to give notice under this section.

Explanation II. - A buyer -

(i)

who having obtained vacant possession of a building in pursuance of a sale of such building, lets the [whole or part]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]
of it to a tenant, or allows the [whole or part]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]
of it to be occupied by an person; or

(ii)

who, without obtaining such vacant possession, allows the seller to occupy the whole of the building, shall be deemed to have failed to give notice under this section.

(b)

Every notice given under clause (a) shall contain such particulars as may be prescribed.

(2)

Where the tenant of a building puts an other person in occupation thereof and does not re-occupy it within a person of three months, then, on the expiry of such period, the tenancy shall be deemed to have been terminated and it shall be the duty of the tenant, and also of the landlord if he is aware of such termination, to give notice thereof in writing to the authorised officer within seven days of such termination:

Provided that where the tenant obtains written permission from the authorised officer to re-occupy the building within a period of six months, this sub-section shall have effect as if for the period of three months specified therein a period of six months were substituted.

Explanation. - This sub-section shall not apply where the building has been sub-let by a tenant entitled to do so, after giving due notice to the authorised officer under sub-section (1) and in conformity with the provisions of this section.

(3)

[If within ten days of the receipt by the authorised officer of a notice from the landlord under sub-section (1),]

[Substituted by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

or sub-section (2), the Government or the authorised officer do or does not intimate to the landlord in writing that the building is required for the purposes of the Government of the Union territory or a State or Central Government or of any local authority or of any public institution under the control of any such Government or for the occupation of any officer of such Government, the landlord shall be at liberty to let the building to any tenant or to occupy it himself.

[(3-A) The Government may, on the application made by the landlord, within fifteen days from the date of the communication of the intimation by the authorised officer under sub-section (3) rectify any error apparent on the face of the record]

[Substituted by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

.

(4)

Where intimation is given under sub-section (1), the landlord shall not let the building to a tenant or occupy it himself, or use or permit the use of the building in any manner by any other person before the expiry of the period of [ten days]

[Substituted by Act No.8 of 1980 which came into force w.e.f 30.07.1980 vide E.G. No.95 dated 30.07.1980.]

specified in sub-section (3), unless in the meantime he has received intimation from the authorised officer that the building is not required for the purposes, or for occupation by any of the officers, specified in that sub-section.

(5)

If the building is required for any of the purpose, or for occupation by any of the officers specified in sub-section (3), the landlord shall deliver possession of the building and the fixtures and fittings in or on the buildings, in good tenantable repairs and condition, to the authorised officer, or to the allottee named by the authorised officer, as the case may be, and the Government shall be deemed to be the tenant of the landlord, with retrospective effect from the date on which the authorised officer received notice under sub-section (1) or sub-section (2), the terms of the tenancy being such as may be agreed upon between the landlord and the tenant and in default of an agreement, as may be determined by the Controller:

Provided that where the landlord fails to deliver possession of the building to the authorised officer within forty-eight hours of the receipt of the intimation that the building is required for any of the purposes, or for occupation by any of the officers specified in sub-section (3), or within such further time as the authorised officer may, by order in writing, allow, the Government shall be deemed to be the tenant of the landlord only from the date on which he delivers possession:

Provided further that where owing to any omission or act or obstructive or preventive tactics on the part of the landlord there has been delay in coming to a decision whether or not the building is required for any of the purposes, or for

occupation by any of the officers specified in sub-section (3), the Government shall be deemed to be the tenant of the landlord only from such other date as may be fixed by the authorised officer having regard to the circumstances of each case:

Provided also that the rent payable shall be the fair rent, if any, fixed for the building under the provisions of this Act; and if no fair rent has been so fixed, such reasonable rent as the authorised officer may determine, in such manner as may be prescribed:

Provided also that the reasonable rent fixed by the authorised officer under the foregoing proviso shall be subject to such fair rent as may be fixed by the Controller.

Explanation. - Where before the fixation of fair rent, rent has been paid in excess thereof, the refund or adjustment shall have retrospective effect from the date on which the Government shall be deemed to be the tenant of the landlord, provided the application for fixation of fair rent is made within a period of ninety days from such date; where such application is made after the said period of ninety days, the refund or adjustment shall be limited to the amount paid in excess for the period commencing on the date of application by the tenant or landlord for the fixation of fair rent and ending with date of such fixation:

Provided also that on the delivery of possession of the building, the allottee shall pay rent to the landlord proportionately for any part of the calendar month of his occupation, and in advance on or before the 5th day of each calendar month:

Provided also that no structural alterations shall be made in the building, unless the consent of the landlord is obtained therefor.

(6)

If, in the case of a residential building the possession of which has been delivered to the authorised officer under sub-section (5) and in the occupation of an officer of the Union territory or a State or Central Government, the fair rent is subsequently fixed at an amount not exceeding twenty-five rupees per month, the said officer shall be deemed to have become the tenant of the landlord on the date on which such fair rent is fixed on the same terms, except as to rent, as obtained between the landlord and the Government on the said date.

(7)

In case not falling under sub-section (5), where the landlord lets the building to any tenant after giving notice to the authorised officer under sub-section (1) or sub-section (2) and without having occupied the building himself, or used or permitted the use of the building in any manner by any other person, the tenancy shall be deemed to have been antedated by the number of days during which the landlord was prohibited from letting the building to any tenant by virtue of subsection (4) and the tenant shall be liable to pay rent for those days also.

(8)

(a)

Where a landlord has two or more residential buildings in the same Commune and they have not been already let by him, then within fifteen days from the date on which this Act comes into force in the said Commune or part thereof, or from the date on which the landlord commenced to have more than one such building, whichever is later, the landlord may choose any one of such buildings for his own occupation and shall give notice to the authorised officer of the building so chosen by him and of every other building not so chosen.

(b)

When giving notice as aforesaid, the landlord shall also specify therein -

(i)

whether he requires any such building for the occupation of any member of his family or any dependant of his and, if so, where the member of dependant, as the case may be, is residing and the necessity for any change of residence; and

(ii)

such other particulars as may be prescribed.

(c)

The authorised officer may, if he is satisfied that the residential building is required bona fide for the occupation of any member of the family of the landlord or of any of his dependants, make an order permitting the landlord to allow such member or dependant, as the case may be, to occupy the residential building for a specified or an unspecified period; and if the authorised officer is not so satisfied, he shall make an order refusing such permission.

(d)

Any landlord who is aggrieved by any order passed by the authorised officer under clause (c) may, within seven days

from the date of receipt of such order, prefer an appeal in writing to the accommodation appellate authority; and the said authority shall, after such enquiry as it may consider necessary, pass such orders on the appeal as it may think fit. On such appeal being preferred, the said authority may order stay of further proceedings in the matter pending decision on the appeal.

(e)

(i)

Every notice given by the landlord under clause (a) shall, in so far as it relates to any residential building other than the one chosen by him for his own occupation, be deemed to be a notice under sub-section (1).

(ii)

If, the case of a residential building governed by clause (b), the notice specified that the residential building is required for the purposes mentioned in sub-clause (i) of that clause, the provisions of sub-section (3) shall apply as if the notice had been given by the landlord under sub-section (1) immediately after the lapse of the period of seven days from the date of receipt by the landlord of the order passed by the authorised officer, or if an appeal has been preferred to the accommodation appellate authority against that order within that period, as if notice had been given as aforesaid by the landlord on the date of the order passed on the appeal.

(9)

(a)

(i)

Any officer empowered by the Government in this behalf may summarily dispossess any landlord, tenant or other person occupying any building in contravention of the provisions of this section or any landlord who fails to deliver to the Government possession of any building in accordance with the provisions of sub-section (5) and may take possession of the building including any portion thereof which may have been sub-let. The Government shall be deemed to be the tenant of such building with effect from the date of taking such possession.

(ii)

Any such officer as is referred to in sub-clause (i) may summarily dispossess any officer, local authority or public institution continuing to occupy, or failing to deliver possession of, any building in respect of which the Government shall be deemed to be the tenant by virtue of this section, after the termination of his or its licence to occupy such building and take possession of the building including any portion thereof which may have been sub-let:

Provided that in cases where any landlord has been refused permission for the occupation of a building under clause (c) of sub-section (8), not less than seven days notice shall be given before action is taken under this sub-section.

(b)

If free access to the building is not afforded to the officer empowered under sub-clause (i) of clause (a), he may at any time after sunrise and before sunset, and after giving reasonable warning and facility to withdraw to any woman not appearing in public according to the customs of the country, remove or open any lock or bolt or break open any door or do any other act necessary for effecting such dispossession.

(c)

Any landlord tenant or other person or any officer, local authority or public institution liable to be summarily dispossessed under clause (a), shall pay to the Government -

(i)

the fair rent payable for the building under provisions of this Act for the period of his occupation or possession thereof as described in that clause, and

(ii)

the expenses, if any, incurred by the Government in effecting such summary dispossession, as determined by them (which determination shall be final).

(d)

[(i) If the authorised officer who takes possession of the building under clause (a), is of the opinion that the building is not in a tenantable condition, he may prepare or cause to be prepared an estimate of the repairs necessary including white-washing to make the building tenantable and give notice to the landlord to carry out the repairs within a reasonable time;

[Inserted by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

(ii)

If the landlord fails to make necessary repairs to the building within such reasonable time, the authorised officer may make such repairs including whitewashing or allot the building subject to the condition that the allot the building subject to the condition that the allottee shall carry out the repairs including whitewashing according to the aforesaid estimate and deduct the cost of such repairs from the rent payable to the landlord in such monthly instalments as may be specified by the authorised officer:

Provided that in no case such monthly instalment shall exceed one-half of the monthly rent payable by the tenant].

(10)

Nothing contained in this section shall apply -

(a)

to a residential building, the monthly rent of which does not exceed twenty-five rupees; or

(b)

to a non-residential building, the monthly rent of which does not exceed fifty rupees; or

(c)

to a residential building, a part only of which is occupied by the full owner and the whole or any portion of the remaining part of such building is let to any tenant.

Provided that this clause shall not apply to any building, if -

(i)

the portions occupied by the full owner and the tenant are self-contained and separate units;

(ii)

the full owner does not actually occupy the building for residential purposes; or

(iii)

the full owner is in actual occupation of another residential building; or]

(d)

to any building or buildings in the same Commune owned by any company, association or firm, whether incorporated or not, and bona fide intended solely for the occupation of its officers, servants or agents.

Explanation. - In clause (c) "full owner" means a person entitled to the absolute proprietorship of the building.

4A.

[Release of building.

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

(1)

A landlord may apply to the authorised officer for the release of the building in respect of which a notice has been given under sub-section (1) of section 4 or in respect of which, the Government are, under sub-section (5) of section 4 deemed to be the tenant if -

(a)

in the case of a residential building, the landlord requires it for his own occupation or for the occupation of any member of his family and the landlord or the member of his family is not occupying any residential building of his own in the city, town or village concerned;

(b)

in the case of a non-residential building which is used for the purpose of keeping a vehicle or adapted for such use, the landlord requires it for his own use or for the use of any member of his family and the landlord or the member of his family is not using any such building of his own in the city, town or village concerned;

(c)

in the case of any non-residential building other than the nonresidential building mentioned in clause (b), the landlord or any other member of his family requires it for the purpose of his business and the landlord or the member of his family does not occupy any such non-residential building of his own for the purpose of his business in the city, town or village concerned; or

(d)

the building, whether residential or non-residential whose landlord is a religious, charitable, educational or other public institution, is required for the purpose of such institution.

(2)

The authorised officer, may, if he is satisfied that the claim of the landlord is bona fide and reasonable make an order

releasing the building subject to such conditions and restrictions as may be think fit and if he is not so satisfied, make an order rejecting the application made under sub-section (1).

(3)

Any person who is aggrieved by an order passed by the authorised officer under sub-section (2) may, within fifteen days from the date of receipt of such order, prefer an appeal to the Government and the Government shall pass such order as they deem fit and on such appeal being preferred, the Government may order stay of further proceedings in the matter pending decision on the appeal.

(4)

A building released in pursuance of an order made under sub-section (2) shall, within thirty days of the date of the receipt of the order or such further period as may be allowed by the authorised officer, be occupied by the landlord or by the member of his family for whose occupation the building was required to be released or shall be put to such use for which the release was obtained.

(5)

Where a building released under sub-section (2) has not been occupied by the landlord or by the member of his family or has not been put to such use for which the release was obtained within the period specified in sub-section (4), but is either let out or kept vacant the whole or any part of the building, or put to use for a purpose other than the one for which the release was obtained, such building shall be deemed to have become vacant from the date of the expiry of the period specified in sub-section (4) and the provisions of sub-sections (1), (3), (4), (5), (7) and (9) of section 4 shall apply to such buildings].

5.

[Fixation of fair rent.

[Substituted by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

(1)

The Controller shall on application made by the tenant or the landlord of a building and after holding such enquiry as he thinks fit, fix the fair rent for such building in accordance with the principles set out in the following sub-sections.

(2)

The fair rent for any residential building shall be nine per cent gross return per annum on the total cost of such building.

(3)

The fair rent for any non-residential building shall be twelve per cent gross return per annum on the total cost of such building.

(4)

The total cost referred to in sub-section (2) and sub-section (3) shall consist of the market value of the site in which the building is constructed, the cost of construction of the building and the cost of provision of any one or more of the amenities specified in Schedule I as on the date of application for fixation of fair rent:

Provided that while calculating the market value of the site in which the building is constructed, the Controller shall take into account only that portion of the site on which the building is constructed and of a portion upto fifty per cent thereof of the vacant land, if any, appurtenant to such building, the excess portion of the vacant land, being treated as amenity:

Provided further that the cost of provision of amenities specified in Schedule I shall not exceed -

(i)

in the case of any residential building, fifteen per cent; and

(ii)

in the case of any non-residential building, twenty-five per cent of the cost of site in which the building is constructed and the cost of construction of the building as determined under this section.

(5)

(a)

The cost of construction of the building including cost of internal water-supply, sanitary and electrical installations shall be determined with due regard to the rates adopted for the purpose of estimation by the Public Works Department of the Government for the area concerned. The Controller may, in appropriate cases, allow or disallow an amount not exceeding thirty per cent of the cost of construction having regard to the nature of construction of the building.

(b)

The Controller shall deduct from the cost of construction determined in the manner specified in clause (a), depreciation

calculated at the rates specified in Schedule II].

6.

Change in fair rent in what cases admissible.

(1)

When the fair rent of a building has been fixed [or refixed]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

under this Act, no further increase in such fair rent shall be permissible except in cases where some addition, improvement or alteration has been carried out at the landlord's expense and if the building is then in the occupation of a tenant, at his request:

Provided that the fair rent as increased under this sub-section shall not exceed the fair rent payable under this Act for a similar building in the same locality with such addition, improvement or alternation and it shall not be chargeable until such addition, improvement or alteration has been completed:

Provided further that any dispute between the landlord and the tenant in regard to any increase claimed under this sub-section shall be decided by the Controller.

(2)

Where, after the fair rent of a building has been fixed under this Act, there is a decrease or diminution in the accommodation or amenities provided, the tenant may claim a reduction in the fair rent as so fixed:

Provided that any dispute between the landlord and the tenant in regard to any reduction so claimed shall be decided by the Controller.

(3)

[Where the fair rent of any building has been fixed before the date of the commencement of the Puducherry Buildings (Lease and Rent Control) (Amendment) Act, 1980, the landlord or the tenant may apply to the Controller to refix the fair rent in accordance with the provisions of section 5 and on such application, the Controller may refix the fair rent.]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

7.

Landlord not to claim or receive anything in excess of fair rent or agreed rent.

(1)

Where the controller has fixed [or refixed]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

the fair rent of a building -

(a)

the landlord shall not claim, receive or stipulate for the payment of (i) any premium or other like-sum in addition to such fair rent, or (ii) save as provided in section 6, anything in excess of such fair rent;

Provided that the landlord may receive, or stipulate for the payment of, an amount not exceeding one month's rent, by way of advance;

(b)

save as provided in clause (a), any premium or other like-sum or any rent paid in addition to, or in excess of, such fair rent, whether before or after the date of commencement of this Act, in consideration of the grant, continuance or renewal of the tenancy of the building after the date of such commencement, shall be refunded by the landlord to the person by whom it was paid or at the option of such person, shall be otherwise adjusted by the landlord:

[Provided that where before the fixation or refixation of the fair rent, rent has been paid in excess thereof, the refund or adjustment shall be limited to the amount paid in excess for the period commencing on the date of the application by the tenant or landlord under sub-section (1) of section 5 or sub-section (3) of section 6, as the case may be, and ending with the date of such fixation or refixation]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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(2)

Where the fair rent of a building has not been so fixed -

(a)

the landlord shall not claim, receive or stipulate for the payment of, any premium or other like-sum in addition to the agreed rent:

Provided that the landlord may receive, or stipulate for the payment of, an amount not exceeding one month's rent, by way of advance;

(b)

save as provided in clause (a), any sum paid in excess of the agreed rent, whether before or after the date of the commencement of this Act, in consideration of the grant, continuance or renewal of the tenancy of the building after the date of such commencement, shall be refunded by the landlord to the person by whom it was paid or, at the option of such person, shall be otherwise adjusted by the landlord.

(3)

Any stipulation in contravention of sub-section (1) or sub-section (2) shall be null and void.

8.

[Landlord liable to give receipt for rent or advance.

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

(1)

Every landlord who receives any payment towards rent or advance shall issue a receipt duly signed by him for the actual amount of rent or advance received by him].

(2)

Where a landlord refuses to accept or evades the receipt of any rent lawfully payable to him by a tenant in respect of any building, the tenant may, by notice in writing, require the landlord to specify within ten days from the date of receipt of the notice by him, a bank into which the rent may be deposited by the tenant to the credit of the landlord:

Provided that such bank shall be one situated in the Commune in which the building is situated or if there is no such bank in such Commune, the nearest bank.

Explanation. - It shall be open to the landlord to specify from time to time by written notice to the tenant and subject to the proviso aforesaid, a bank different from the one already specified by him under this sub-section.

(3)

If the landlord specifies a bank as aforesaid, the tenant shall deposit the rent in the bank and shall continue to deposit in it any rent which may be subsequently become due in respect of the building.

(4)

If the landlord does not specify a bank as aforesaid, the tenant shall remit the rent to the landlord by money order, after deducting the money order commission.

(5)

If the landlord refuses to receive the rent remitted by money order under sub-section (4), the tenant may deposit the rent before the Controller and continue to deposit with him any rent which may subsequently become due in respect of the building.

9.

Right of tenant to deposit rent in certain cases.

(1)

Where the address of the landlord or his authorised agent is not known to the tenant, he may deposit the rent lawfully payable to the landlord in respect of the building, before the Controller in such manner as may be prescribed, and continue to deposit any rent which may subsequently become due in respect of the building, before the Controller and in the same manner until the address of the landlord or his authorised agent becomes known to the tenant.

(2)

The amount deposited under sub-section (3) or under sub-section (5) of section 8, or under sub-section (1) of this section may, subject to such conditions as may be prescribed, be withdrawn by the person held by the Controller to be entitled to the amount on application made by such person to the Controller in that behalf.

(3)

Where any bona fide doubt or dispute arises as to the person who is entitled to receive the rent for any building, the tenant may deposit such rent before such authority and in such manner as may be prescribed and shall report to the Controller the circumstances under which such deposit was made by him and may continue to deposit any rent which may subsequently become due in respect of the building before the same authority and in the same manner until the doubt is removed or the dispute is settled by the decisions of a competent Court or by a settlement between the parties or until the Controller makes an order under clause (b) of sub-section (4), as the case may be.

(4)

(a)

The Controller to whom a report is made under sub-section (3) shall, if satisfied that a bona fide doubt or dispute exists in the matter, direct that, pending removal of the doubt or settlement of the dispute as aforesaid, the deposit be held by the authority concerned.

(b)

If the Controller is not so satisfied, he shall forthwith order payment of the amount deposited to the landlord.

(5)

Where the Controller passes an order under clause (a) of sub-section (4), any amount deposited under sub-section (3) may be withdrawn only by the person who is declared by a competent Court to be entitled thereto, or in case the doubt or dispute is removed by settlement between the parties, only by the person who is held by the Controller to be entitled to the amount or amounts in accordance with such settlement.

10.

Eviction of tenants.

(1)

A tenant shall not be evicted whether in execution of a decree or otherwise except in accordance with the provisions of this section or sections 14 to 16;

Provided that where the tenant denies the title of the landlord or claims right of permanent tenancy, the Controller shall decide whether the denial or claim is bona fide and if he records a finding to that effect, the landlord shall be entitled to sue for eviction of the tenant in a Civil Court and the Court may pass a decree for eviction on any of the grounds mentioned in the said sections, notwithstanding that the Court finds that such denial does not involve forfeiture of the lease or that the claim is unfounded.

(2)

A landlord who seeks to evict his tenant shall apply to the Controller for a direction in that behalf. If the Controller, after giving the tenant a reasonable opportunity of showing cause against the application, is satisfied -

(i)

that the tenant has not paid or tendered the rent due by him in respect of the building, within fifteen days after the expiry of the time fixed in the agreement of tenancy with his landlord or in the absence of any such agreement, by the last day of the month next following that for which the rent is payable, or

(ii)

that the tenant has after the commencement of this Act without the written consent of the landlord -

(a)

transferred his right under the lease or sub-let the entire building or any portion thereof, if the lease does not confer on him any right to do so, or

(b)

used the building for a purpose other than that for which it was leased, or

(iii)

that the tenant has committed or caused to be committed such acts of waste as are likely to impair materially the value of utility of the buildings, or

(iv)

that the tenant has been convicted under any law for the time being in force of an offence of using the building or allowing the building to be used for immoral or illegal purposes, or

(v)

that the tenant has been guilty of such acts and conduct which are a nuisance to the occupiers of other portions in the same building or of buildings in the neighbourhood, or

(vi)

that the tenant has ceased to occupy the building for a continuous period of four months without reasonable cause, or

(vii)

that the tenant has denied the title of the landlord or claimed a right of permanent tenancy and that such denial or claim was not bona fide,

the Controller shall make an order directing the tenant to put the landlord in possession of the building and if the

Controller is not so satisfied, he shall make an order rejecting the application:

Provided that in any case falling under clause (i) if the Controller is satisfied that the tenant's default to pay or tender rent was not wilful, he may, notwithstanding anything contained in section 11, given the tenant a reasonable time, not exceeding fifteen days, to pay or tender the rent due by him to the landlord up to the date of such payment or tender and on such payment or tender, the application shall be rejected.

[Explanation.

[Amended vide Act No. 8 of 1980 w.e.f 30.07.1980 vide EG No. 95 dt. 30.07.1980.]

- For the purpose of this sub-section, default to pay or tender rent shall be construed as wilful, if the default by the tenant in the payment or tender of rent continues after the issue of two months' notice by the landlord claiming the rent].

(3)

(a)

A landlord may, subject to the provisions of clause (d), apply to the Controller for an order directing the tenant to put the landlord in possession of the building -

(i)

in case it is a residential building, if the landlord requires it for his own occupation or for the occupation of [any member of his family]

[Amended by Act No. of 1980 which came into force w.e.f 30.07.1980.]

is not occupying a residential building of his own in the Commune concerned;

(ii)

in case it is a non-residential building which is used for the purpose of keeping a vehicle or adapted for such use, if the landlord requires it for his own use or for the use of *[any member of his family] and if he or [any member of his family]

[Amended by Act No. of 1980 which came into force w.e.f 30.07.1980.]

is not occupying any such building of his own in the Commune concerned;

(iii)

in case it is any other non-residential building, if the landlord or [any member of his family]

[Amended by Act No. of 1980 which came into force w.e.f 30.07.1980.]

is not occupying for purposes of a business which he or [any member of his family]

[Amended by Act No. of 1980 which came into force w.e.f 30.07.1980.]

his carrying on a non-residential building of his own in the Commune concerned:

Provided that a person who becomes a landlord after the commencement of the tenancy by an instrument inter vivos shall not be entitled to apply under this clause before the expiry of three months from the date on which the instrument was duly executed:

Provided further that where a landlord has obtained possession of a building under this clause, he shall not entitled to apply again under this clause -

(i)

in case he has obtained possession of a residential building, for possession of another residential building of his own;

(ii)

in case he has obtained possession of a non-residential building, for possession of another non-residential building of his own.

(b)

Where the landlord of a building whether residential or non-residential, is a religious, charitable, educational or other public institution, it may, if the building is required for the purposes of the institution, apply the Controller subject to the provisions of clause (d), for an order directing the tenant to put the institution in possession of the building.

(c)

A landlord who is occupying only a part of a building, whether residential or non-residential may, notwithstanding anything contained in clause (a), apply to the Controller for an order directing any tenant occupying the whole or any portion or the remaining part of the building to put the landlord in possession thereof, if he requires additional accommodation for residential purposes or for purposes of a business which he is carrying on, as the case may be.

(d)

Where the tenancy is for a specified period agreed upon between the landlord and the tenant, the landlord shall not be entitled to apply under this subsection before the expiry of such period.

(e)

The Controller shall, if he is satisfied that the claim of the landlord is bona fide, make an order directing the tenant to put the landlord in possession of the building on such date as may be specified by the Controller and if the Controller is not so satisfied he shall make an order rejecting the application:

Provided that, in the case of an application under clause (c), the Controller shall reject the application if he is satisfied that the hardship which may be caused to the tenant by granting it will outweigh the advantage to the landlord:

Provided further that the Controller may give the tenant a reasonable time for putting the landlord in possession of the building and may extend such time so as not to exceed three months in the aggregate.

[(3-A)(a) Where the landlord has been or is a member of the Armed Forces and -

(i)

is released or has retired from service and the building is bona fide required for his residence; or

(ii)

is stationed at a place where on account of military exigencies, he cannot live with his family or dies on active duty and the building is bona fide required for the residence of his family, the Controller shall, on application made by the landlord or the member of his family, as the case may be, if he is satisfied that the claim of the landlord or the member of his family is bona fide, pass an order directing the tenant to put the landlord or the member of his family in possession of the building and if the Controller is not so satisfied, he shall make an order rejecting the application.

(b)

Notwithstanding anything contained in clause (a), where the landlord or the member of his family produces a certificate from the prescribed authority under the Indian Soldiers (Litigation) Act, 1925 (Central Act IV of 1925), that the landlord is serving under special conditions within the meaning of section 3 of that Act, the application referred to in clause (a) shall be disposed of, as far as may be, within a period of one month and if the claim of the landlord or the member of his family is accepted, the Controller shall pass an order directing the tenant to put the landlord or the member of his family in possession of the building on such date as may be specified in the order which shall not be later than one month from the date of such order.

Explanation. - For the purpose of this sub-section, "member of the Armed Forces" means a person in the service of the Air Force, Army or Navy of the Union of India and includes a seaman and "seaman" means every person including a master, pilot or apprentice employed or engaged as a member of the crew of a ship or a sailing vessel to which the Merchant Shipping Act, 1958 (Central Act

44 of 1958

), applies:

Provided that if a question arises whether any person is a member of the Armed Forces, such questions shall be decided by the Controller and his decision shall be final.

(3-B) [(a) Where a landlord who, -

(i)

being a person in occupation of any residential premises allotted to him by the Central Government, State Government or any local authority, is required by or in pursuance of any general or special order made by that Government or authority, to vacate such residential accommodation or in default, to incur certain obligations on the ground that he owns in the Union territory of Puducherry a residential accommodation either in his own name or in the name of a member of his family, or

(ii)

being a person in the service of such Government or authority, at any time, within one year prior to or within one year after the date of his retirement or after his retirement but within one year of the date of commencement of the Puducherry Buildings (Lease and Rent Control) Amendment Act, 1987, whichever is later, applies to the Controller along with a certificate from the authority competent to remove him from service indicating the date of his retirement and an affidavit to the effect that he does not own and possess any other suitable residential accommodation in the local area in which he intends to reside, in the Union territory of Puducherry, either in his own name or in the name of a member of his family, to recover possession of his residential building for his own occupation,]- there shall accrue, on and from the date of such order, [or, as the case may be, such application]

[Amended vide Act

No.10 of 1987

w.e.f 7.12.87.]

to such landlord, notwithstanding anything contained elsewhere in this Act or in any other law for the time being in force or in any contract (whether expressed or implied), custom or usage to the contrary, a right to recover immediately possession of any premises let out by him:

Provided that nothing in this section shall be construed as conferring a right on a landlord owning, in the Union territory of Puducherry two or more dwelling houses, whether in his own name or in the name of a member of his family, to recover the possession of more than one dwelling house and it shall be lawful for such landlord to indicate the dwelling house, possession of which he intends to recover.

(b)

Notwithstanding anything contained elsewhere in this Act or in any other law for the time being in force or in any contract, custom or usage to the contrary, where the landlord exercises the right of recovery conferred on him by clause (a), no compensation shall be payable by him to the tenant or any person claiming through or under him and no claim for such compensation shall be entertained by any court, tribunal or other authority:

Provided that where the landlord had received any rent in advance from the tenant, he shall, within a period of ninety days from the date of recovery of the premises by him, refund to the tenant such amount as represents the rent payable for the unexpired portion of the contract, agreement or lease:

Provided further that, if any default is made in making any refund as aforesaid, the landlord shall be liable to pay simple interest at the rate of six per cent per annum]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

;

(4)

No order for eviction shall be passed under sub-section (3) -

(i)

against any tenant who is engaged in any employment or class of employment notified by the Government as an essential service for the purposes of this sub-section, unless the landlord is himself engaged in any employment or class of employment which has been so notified, or

(ii)

in respect of any building which has been let for use as an educational institution and is actually being used as such, provided that the institution has been recognised by the Government or any authority empowered by them in this behalf so long as such recognition continues.

(5)

(a)

Where a landlord who has obtained possession of a building in pursuance of an order under sub-section (3) [or sub-section (3-A) or sub-section (3-B)]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

does not himself occupy it within one month of the date of obtaining possession or having so occupied it, vacates it without reasonable cause within six months of such date, the tenant who has been evicted may apply to the Controller for an order directing that he shall be restored to possession of the building and the Controller shall make an order accordingly, notwithstanding anything contained in section 4.

(b)

Where a tenant who is entitled to apply for possession under clause (a) fails to do so within one month from the date on which the right to make the application accrued to him, the Government or the authorised officer shall have power, if the building is required for any of the purposes, or for occupation by any of the officers specified in sub-section (3) of section 4 to give intimation to the landlord that the building is so required and thereupon the provisions of sub-sections (5) and (9) of section 4 shall apply to the building:

Provided that this clause shall not apply to a residential building the monthly rent of which does not exceed twenty-five rupees or to a non-residential building the monthly rent of which does not exceed fifty rupees.

(6)

Where the Controller is satisfied that any application made by a landlord for the eviction of a tenant is frivolous or vexatious, the Controller may direct that compensation not exceeding fifty rupees be paid by such landlord to the tenant.

(7)

Where an application under sub-section (2) or [sub-section (3) or sub-section (3-A) or sub-section (3-B)]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

for evicting a tenant has been rejected by the Controller, the tenancy shall, subject to the provisions of this Act, be deemed to continue on the same terms and conditions as before and shall not be terminable by the landlord except on any of the grounds mentioned in sub-section (2) or sub-section (3) [or sub-section (3-A) or sub-section (3-B)]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

Provided that nothing in this sub-section shall be deemed to prevent a landlord who has made an application for evicting a tenant on any of the grounds, mentioned in sub-section (2) or [sub-section (3) or sub-section (3-A) or sub-section (3-B)]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

from applying again, when the previous application is pending, to the Controller for evicting the tenant on any of the other grounds mentioned in subsection (2) or [sub-section (3) or sub-section (3-A) or sub-section (3-B)]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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(8)

Notwithstanding anything contained in this section, no person who is receiving or is entitled to receive the rent of a building merely as an agent of the landlord shall, except with the previous written consent of the landlord, be entitled to apply for the eviction of the tenant.

11.

Payment or deposit of rent during the pendency of Proceeding for eviction.

(1)

No tenant against whom an application for eviction has been made by a landlord under section 10 shall be entitled to contest the application before the Controller under that section, or to prefer any appeal under section 23 against any order made by the Controller on the application unless he has paid or pays to the landlord, or deposits with the controller or the appellate authority, as the case may be, all arrears of rent due in respect of the building up to the date of payment or deposit, and continues to pay or to deposit any rent which may subsequently become due in respect of the building until the termination of the proceedings before the Controller or the appellate authority, as the case may be.

(2)

The deposit of rent under sub-section (1) shall be made within the time and in the manner prescribed.

(3)

Where there is any dispute as to the amount of rent to be paid or deposited under sub-section (1), the Controller or the appellate authority, as the case may be, shall, on application made to him either by the tenant or by the landlord and after making such enquiry as he deems necessary, determine summarily the rent to be so paid or deposited.

(4)

If any tenant fails to pay or to deposit the rent as aforesaid, the Controller or the appellate authority, as the case may be, shall, unless the tenant shows sufficient cause to the contrary, stop all further proceedings and made an order directing the tenant to put the landlord in possession of the building.

(5)

The amount deposited under sub-section (1) may, subject to such conditions as may be prescribed, be withdrawn by the landlord on application made by him in that behalf to the controller or the appellate authority, as the case may be.

12.

Recovery of possession by landlord for repairs or for reconstruction of building in respect of which the Government shall be deemed to be the tenant.

(1)

Notwithstanding anything contained in this Act, on an application made by a landlord of a building in respect of which the Government shall be deemed to be the tenant, the authorised officer shall, if he is satisfied -

(a)

that the building is bona fide required by the landlord for carrying out the repairs which cannot be carried out without the building being vacated, or

(b)

the building is bona fide required by the landlord for the immediate purpose of demolishing it and such demolition is to

be made for the purpose of erecting a new building on the site of the building sought to be demolished.
pass an order directing the allottee to deliver possession of the building to the landlord before a specified date.

(2)

An order passed by the authorised officer under sub-section (1) directing the allottee to deliver possession of the building to the landlord shall be subject to such conditions and restrictions as may be prescribed.

(3)

No order directing the allottee to deliver possession of the building shall be passed by the authorised officer under sub-section (1) -

(a)

on the ground specified in clause (a) of sub-section (1), unless the landlord gives an undertaking that the building shall, on completion of the repairs, be offered to a authorised officer before the expiry of three months from the date of recovery of possession by the landlord or before the expiry of such further period as the authorised officer may, for reasons to be recorded in writing, allow, for reallocation to any person named by the authorised officer, or

(b)

on the ground specified in clause (b) of sub-section (1), unless the landlord gives an undertaking that the work of demolishing any material portion of the building shall be substantially commenced by him not later than one month, and shall be completed before the expiry of three months from the date he recovers possession of the entire building or before the expiry of such further period as the authorised officer may, for reasons to be recorded in writing, allow.

[(3-A) (a) Any person aggrieved by an order passed by the authorised officer under sub-section (1) may, within fifteen days from the date of receipt of such order, prefer an appeal to the Government and the Government shall pass such order, including extension of time for vacating the building, as they deem fit.

(b)

On such appeal being preferred, the Government may order stay of further proceedings pending decision on the appeal].

(4)

Notwithstanding an order passed by the authorised officer under clause (a) of sub-section (1) directing the allottee to deliver possession of the building, the Government shall be deemed to continue to be the tenant, but the landlord shall not be entitled to any rent for the period commencing on the date of delivery of possession of the building by the allottee to the landlord and ending with the date on which the building is offered to the authorised officer by the landlord in pursuance of the undertaking under clause (a) of sub-section (3).

(5)

Nothing contained in this section shall entitle the landlord who has recovered possession of the building for repairs to convert a residential building into a non-residential building or a non-residential building into a residential buildings unless such conversion is permitted by the authorised officer at the time of passing an order under clause (a) of sub-section (1).

(6)

If, after the allottee has delivered possession, the landlord fails to commence the work or repairs within one month from the date of such delivery or fails to complete the work before the expiry of three months from the date of such delivery or before the expiry of further period allowed under clause 9(a) of subsection (3) or having completed the work fails to offer the building to the authorised officer, the authorised officer may suo motu or on application order the reallocation of the building to any person named by him and on such order being made, the landlord and any other person who may be in occupation shall put the allottee in possession of the building.

13.

Authorised officer to give notice to landlord in certain cases.

(1)

Where an order directing delivery of possession has been passed by the authorised officer under clause (b) of sub-section (1) of section 12 and the work of demolishing any material portion of the building has not been substantially commenced by the landlord within the period of one month in accordance with his undertaking under clause (b) of sub-section (3) of section 12, the authorised officer may give the landlord notice of his intention to re-allot the building to any person named by him. If within fifteen days from the date of receipt of such notice, the landlord does not offer the building to the authorised officer, the authorised officer may re-allot the building to any person named by him on the

original terms and conditions and order the landlord to put such person in possession of the building.

(2)

[Where in pursuance of an order passed by the authorised officer under clause (b) of sub-section (1) of section 12, any building is totally demolished and a new building is erected in its place, all the provisions of this Act shall cease to apply to such new building for a period of five years from the date on which the construction of such new building is completed and notified to the local authority concerned]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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14.

Recovery of possession by landlord for repairs or for construction.

(1)

Notwithstanding anything contained in this Act, but subject to the provisions of sections 12 and 13, on an application made by a landlord, the Controller shall, if he is satisfied -

(a)

that the building is bona fide required by the landlord for carrying out repairs which cannot be carried out without the building being vacated, or

(b)

that the building is bona fide required by the landlord for the immediate purpose of demolishing it and such demolition is to be made for the purpose of erecting a new building on the site of the building sought to be demolished, pass an order directing the tenant to deliver possession of the building to the landlord before a specified date.

(2)

No order directing the tenant to deliver possession of the building under this section shall be passed -

(a)

on the ground specified in clause (a) of sub-section (1), unless the landlord gives an undertaking that the building shall, on completion of the repairs, be offered to the tenant, who delivered possession in pursuance of an order under subsection (1) for his re-occupation before the expiry of three months from the date of recovery of possession by the landlord, or before the expiry of such further period as the Controller may, for reasons to be recorded in writing, allow; or

(b)

on the ground specified in clause (b) of sub-section (1), unless the landlord gives an undertaking that the work of demolishing any material portion of the building shall be substantially commenced by him not later than one month and shall be completed before the expiry of three months from the date he recovers possession of the entire building or before the expiry of such further period as the Controller may, for reasons to be recorded in writing, allow.

(3)

Nothing contained in this section shall entitle the landlord who has recovered possession of the building for repairs to convert a residential building into a non-residential building or a non-residential building into a residential building unless such conversion is permitted by the Controller at the time of passing an order under sub-section (1).

(4)

Notwithstanding an order passed by the Controller under clause (a) of subsection (1) directing the tenant to deliver possession of the building, such tenant shall be deemed to continue to be the tenant, but the landlord shall not be entitled to any rent for the period commencing on the date of delivery of possession of the building by the tenant to the landlord and ending with the date on which the building is offered to the tenant by the landlord in pursuance of the undertaking under clause (a) of sub-section (2).

(5)

Nothing in this section shall entitle any landlord of a building in respect of which the Government shall be deemed to be the tenant to make any application under this section.

15.

Tenant to re-occupy after repairs.

(1)

Where the landlord recovers possession under clause (a) of sub-section (1) of section 14, he shall, within two months before the date on which the work of repairs is likely to be completed, give notice, to the tenant of the date on which the said work will be completed. Within fifteen days from the date of receipt of such notice, the tenant shall intimate to the

landlord his acceptance of the building offered for his re-occupation and if the tenant gives such intimation, the landlord shall, within thirty days from the date of completion of the work of repairs, put the tenant in possession of the building on the original terms and conditions. If the tenant fails to give such intimation, his right to re-occupy the building shall terminate.

(2)

If after the tenant has delivered possession, the landlord fails to commence the work of repairs within one month from the date of such delivery, or fails to complete the work before the expiry of three months from the date of such delivery, or before the expiry of the further period allowed under clause (a) of subsection (2) of section 14 or having completed the work fails to put the tenant in possession of the building in accordance with the provisions of sub-section (1), the Controller may, on the application of the tenant made within thirty days from the date of such failure, order the landlord to put the tenant in possession of the building on the original terms and conditions; and on such order being made the landlord and any person who may be in occupation shall put the tenant in possession of the building.

16.

Tenant to occupy if the building is not demolished.

(1)

Where an order directing delivery of possession has been passed by the Controller under clause (b) of sub-section (1) of section 14 and the work of demolishing any material portion of the building has not been substantially commenced by the landlord within the period of one month in accordance with his undertaking under clause (b) of sub-section (2) of section 14, the tenant may give the landlord notice of his intention to occupy the building the possession of which he delivered. If, within fifteen days from the date of receipt of such notice, the landlord does not put him in possession of the building on the original terms and conditions, the tenant may make an application to the Controller within eight weeks of the date on which he put the landlord in possession of the building. The Controller shall order the landlord to put the tenant in possession of the building on the original terms and conditions.

(2)

[Where in pursuance of an order passed by the Controller under clause (b) of sub-section (1) of section 14, any building is totally demolished and a new building is erected in its place, all the provisions of this Act shall cease to apply to such new building for a period of five years from the date on which the construction of such new building is completed and notified to the local authority concerned]

[Amended by Act No. 8 of 1980 which came into force w.e.f 30.07.1980.]

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17.

Landlord not to interfere with amenities enjoyed by the tenant.

- [(1) No landlord shall without just or sufficient cause, cut off or withhold or cause to be cut off or withheld any of the amenities enjoyed by the tenant or were in existence during the previous tenancy]

[Amended by Act No. 8 of 1980 which came into force w.e.f 30.07.1980.]

.

(2)

A tenant in occupation of a building may, if the landlord has contravened the provisions of this section, make an application to the Controller complaining of such contravention.

(3)

If the tenant satisfied the Controller that the amenities were cut off or withheld or caused to be cut off or withheld [...]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

the Controller may pass an interim order, directing the landlord to restore the amenities immediately, pending the enquiry referred to in sub-section (4).

[Provided that if the amenities are not restored within seven days from the date of the interim order, the Controller may permit the tenant to restore the amenities at his own cost and recover the cost of the expense incurred by the tenant in respect of restoration of such amenities from the rent payable to the landlord in such monthly instalments as may be specified by the Controller]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

.

Explanation. - An interim order may be passed under this sub-section without giving notice to the landlord.

(4)

If the Controller on enquiry finds that the tenant has been in enjoyment of the amenities [or that the amenities were in existence during the previous tenancy]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

and that they were cut off or withheld by the landlord without just or sufficient cause or if the landlord was in any way responsible for the amenities being cut off or withheld, he shall make an order directing the landlord to restore such amenities.

(5)

The Controller may, in his discretion, direct that compensation not exceeding fifty rupees -

(a)

be paid to the landlord by the tenant, if the application under sub-section (2) was made frivolously or vexatiously;

(b)

be paid to the tenant by the landlord, if the landlord had cut off or withheld the amenities or was in any way responsible for the amenities being cut off or withheld frivolously and vexatiously.

Explanation. - In this section, the expression "amenities" includes supply of water, electricity, passages, staircases, lights, lavatories, lifts, and conservancy or sanitary services.

18.

Execution of orders.

- Every order made under sections 10, 12, 13, 14, 15, 16 and 17 and every order passed on appeal under section 23 or on revisions under section 25 shall be executed by the Munsif having jurisdiction over the area in which the building is situated and if there are more than one such Munsif by the Principal Munsif as if it were a decree passed by him:

Provided that an order passed in execution under this section shall not be subject to an appeal, but shall be subject to revision under section 25.

19.

Decisions which have become final not to be reopened.

- [Any application under section 4-A or section 12, and any application under sub-section (2) or sub-section (3) or sub-section (3-A) of section 10 or under section 14, 15 or 16 shall be summarily rejected by the authorised officer or the Controller, as the case may be, if such application]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

raises between the same parties or between parties under whom they or any of them claim, substantially the same issues as have been finally decided or as purport to have been finally decided in a former proceeding under this Act.

20.

Orders of Controller to be pronounced in open court.

- Every order passed by a Controller under this Act shall be pronounced in open Court on the day on which the case is finally heard, or on some future day of which due notice shall be given to the parties.

21.

Conversion into non-residential buildings.

- No residential building shall be converted into a non-residential building except with permission in writing of the Controller.

22.

Failure by landlord to make necessary repairs.

- [(1) If a landlord fails to make necessary repairs to the building within a reasonable time after notice is given -

(a)

by the authorised officer in the case of a building in respect of which the Government shall be deemed to be the tenant under sub-section (5) of section 4;

(b)

by the tenant in the case of any other building; the authorised officer aforesaid may, in the case referred to in clause (a), make such repairs or have them made by the allottee and deduct the cost thereof from the rent payable for the building or ask the allottee to make such deduction from the rent payable; and the Controller may, in the case referred to in clause (b), direct, on application by the tenant, that such repairs may be made by the tenant and that the cost thereof may be deducted by the tenant from the rent payable for the building:

Provided that the cost of repairs, and the deduction thereof which the authorised officer or the Controller, as the case may be, may authorise shall not exceed in any one year one-twelfth of the rent payable in respect of the building for that year.]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

(2)

[The landlord shall not, while making repairs render the building uninhabitable by digging up the floor or by removing any door or window or by causing any other damage to any part of the building]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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23.

Appeal.

- [(1) Any person aggrieved by an order passed by the Controller may, within 15 days from the date of such order, excluding the time taken to obtain a certified copy of the order, file an appeal in writing to the District Court]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

.

(2)

on such appeal being preferred, the [District Court]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

may order stay of further proceedings in the matter pending decisions on the appeal.

(3)

The [District Court]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

shall call for the records of the case from the Controller and after giving the parties an opportunity of being heard and, if necessary after making such further inquiry as he thinks fit either personally or through the Controller, shall decide the appeal.

Explanation. - The [District Court]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

may, while confirming the order of eviction passed by the Controller, grant an extension of time to the tenant for putting the landlord in possession of the building.

(4)

The decision of the [District Court]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

and subject to such decision, an order of the Controller shall be final and shall not be liable to be called in question in any court of law, except as provided in section 25.

24.

Costs.

- Subject to such conditions and limitations, if any, as may be prescribed, the costs of and incident to all proceedings before the Controller or the appellate authority referred to in section 23, shall be in the discretion of the Controller or the appellate authority, who shall have full power to determine by whom or out of what property and to what extent such costs are to be paid, and to give all necessary directions for the purpose.

Explanation. - The appellate authority may set aside or vary any order passed by the Controller in regard to the costs of and incident to the proceedings before him.

25.

[Revision.

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

(1)

The High Court may, on the application of any person aggrieved by an order of the appellate authority, call for and examine the record of the appellate authority, to satisfy itself as to the regularity of such proceeding or the correctness, legality or propriety of any decision or order passed therein and if, in any case, it appears to the High Court that any such decision or order should be modified, annulled, reversed or remitted for reconsideration, it may pass orders accordingly.

(2)

Every application to the High Court for the exercise of its power under subsection (1) shall be preferred within one month from the date on which the order or proceeding to which the application relates is communicated to the applicant:

Provided that the High Court, may in its discretion, allow further time not exceeding one month for the filling of any such application, if it is satisfied that the applicant had sufficient cause for not preferring the application within the time specified in this sub-section]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

26.

Order under the Act to be binding on the sub-tenants.

- Any order for the eviction of a tenant passed under this act shall be binding on all sub-tenants who were made parties in the application for eviction but any person who became a sub-tenant after the date of the application for eviction shall be bound by the order of eviction and be evicted as if he were a party to the proceedings, provided that such order was not obtained by fraud or collusion.

27.

Proceedings by or against legal representatives.

(1)

Any application made, appeal preferred, or proceedings taken, under this Act by or against any person, may, in the event of his death, be continued by or against his legal representatives.

(2)

Where any application, appeal or other proceeding could have been made, preferred or taken, under this Act, by or against any person, such application, appeal or other proceeding may, in the event of his death, be made, preferred or taken by or against his legal representatives.

28.

Summons to witnesses.

- Subject to such conditions and limitations as may be prescribed, the Controller may, in his discretion, issue summons to witnesses requiring them to attend in person to give evidence or to produce documents, in their custody in connection with any proceedings before him.

29.

Exemption.

- Notwithstanding anything contained in this Act, the Government may, subject to such conditions as they deem fit, by notification, exempt any building or class of buildings from all or any of the provisions of this Act.

30.

Certified extracts from Property Tax Assessment Register.

- The Officer-in-Charge of Property Tax Assessment Register shall, on application made in this behalf and on payment of two rupees per entry relating to each year, grant to the applicant a certified copy of the extract from the said Register showing the rental value of the building or buildings in respect of which application has been made relating to the period specified in the application. Such certified copy shall be received as evidence of the facts stated therein, in proceedings under this Act.

31.

Landlord and tenant to furnish particulars.

- Every landlord and every tenant of a building shall be bound to furnish to the Controller or any person authorised by him in that behalf, such particulars in respect of the building as may be prescribed.

32.

Penalties.

- [(1) If any person contravenes any of the provisions of sub-section (1), (2), (4) and (5) of section 4, sub-section (4) of section 4-A, clause (a) of sub-section (1) and clause (a) of sub-section (2) of section 7, sub-section (1) of section 8, sub-section (1) of section 17, section 21, sub-section (2) of section 22 or section 31, or any order under sub-section (3) or sub-section (3-A) of section 10, or sub-section (3) of section 17, or any of the conditions in the notification issued under section 29, he shall be punishable with fine which may extend to two thousand rupees.

(1-A) Any landlord or the member of his family, as the case may be, who, after obtaining possession of a building under

sub-section (3) or sub-section (3-A) of section 10, does not occupy it within one month of his taking possession or having so occupied, vacates it without reasonable cause within six months of such date, shall be punishable with fine which may extend to two thousand rupees]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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(2)

(a)

Any landlord who after the allottee has vacated the building before the date specified in the order passed under clause (a) of sub-section (1) of section 12, fails to commence the work of repairs without reasonable excuse and any landlord or other person in occupation of the building who fails to comply with the order passed by the authorised officer under sub-section (6) of section 12, shall, on conviction, be punishable with fine which may extend to [two thousand rupees]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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(b)

Any landlord who recover possession on the ground specified in clause (b) of sub-section (1) of section 12 and fails to carry out the undertaking referred to in clause (b) of sub-section (3) of the said section without any reasonable excuse or fails to comply with the conditions and restrictions prescribed under sub-section (2) of the said section or fails to comply with the order of the authorised officer under sub-section (1) of section 13 shall, on conviction, be punishable with fine which may extend to [two thousand rupees]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

.

(3)

(a)

Any landlord who after the tenant has vacated the building before the date specified in the order passed under clause (a) of sub-section (1) of section 14 fails to commence the work of repairs without reasonable excuse and any landlord or other person in occupation of the building who fails to comply with the order passed by the Controller under sub-section (2) of section 15 shall, on conviction, be punishable with fine which may extend to [two thousand rupees]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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(b)

Any landlord who recovers possession on the ground specified in clause (b) of sub-section (1) of section 14 and fails to carry out the undertaking referred to in clause (b) of sub-section (2) of the said section without any reasonable excuse or fails to comply with the order of the Controller under sub-section (1) of section 16, shall, on conviction, be punishable with fine which may extend to [two thousand rupees]

[Amended by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

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33.

Power to make rules.

- [(1) The Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.]

[Substituted by Act 15 of 1970 w.e.f 01.08.1969.]

(2)

Without prejudice to the generality of the foregoing power, such rules may provide for -

(a)

all matters expressly required or allowed by this Act to be prescribed;

(b)

the procedure to be followed by Controllers and appellate authorities in the performance of their functions under this Act;

(c)

the manner in which notices and orders under this Act shall be given or served;

(d)

setting aside ex-parte orders and orders of dismissal for default passed under this Act;

(e)

applications for making legal representatives of deceased persons, parties to proceedings under this Act and the time within which such applications shall be preferred;

(f)

the procedure to be followed in taking possession of a building and in disposing of the articles found therein at the time of taking possession; and

(g)

the fee leviable in respect of applications and appeals under this Act.

(3)

In making a rule under this section, the Government may provide that a person who contravenes any of the provisions thereof shall be punishable with fine which may extend to one thousand rupees.

(4)

All rules made and all notifications issued under this Act shall be laid, as soon as may be after they are made or issued, before the Legislative Assembly, Puducherry, while it is in session for a total period of fourteen days which may be comprised in one session or in two successive sessions, and it before the expiry of the session in which they are so laid or the session immediately following, the Legislative Assembly makes any modification in the rule or modification in the rule or notification or decides that the rule or notification should not be made or issued, the rule or notification shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or notification.

34.

Indemnity.

(1)

No suit, prosecution, or other legal proceedings shall lie in any Court against any officer or servant of the Government or any person acting under his direction or aiding or assisting him -

(a)

for, or on account of, or in respect of, any sentence passed or deemed to have been passed, any decision given or deemed to have been given, or any act ordered or deemed to have been ordered or done or deemed to have been done by him, in exercise of any jurisdiction or power purporting to have been conferred on him by or under this Act; or

(b)

for carrying out any sentence passed or decision given by an Court or other authority in exercise of any such jurisdiction or power as aforesaid.

(2)

No suit or other legal proceeding shall lie against the Government for, or on account of, or in respect of, any act, matter or thing whatsoever, purporting to have been done in pursuance of or under this Act.

35.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appear to it to be necessary or expedient for the removal of the difficulty:

Provided that no such order shall be made after the expiration of two years from the commencement of this Act.

[Schedule - I]

[Inserted by Act No.8 of 1980 which came into force w.e.f 30.07.1980.]

(See section 5)

Amenities

1. Air conditioner.
2. Lift.
3. Water cooler.
4. Electrical heater.
5. Frigidaire.
6. Mosaic flooring.
7. Side dadoos.

8. Compound walls.
9. Garden.
10. Over-head tank for water-supply.
11. Electric pump and motor for water-supply.
12. Play ground.
13. Badminton and Tennis courts.
14. Sun breakers.
15. Amenity referred to in the first proviso to sub-section (4) of section 5.
16. Usufructs, if any, enjoyed by the tenant.
17. Features of special architectural interest.

II

(See section 5)

Rates of depreciation.

Type of building

Rate of depreciation per annum.

(1)

(2)

1. Building built in lime mortar and in which teak has been used throughout.

1 per cent.

2. Buildings built partly of brick in lime mortar and partly of brick in mud and in which teak has been used.

1 ½ per cent.

3. Buildings built in brick in mud and in which country wood has been used.

2 per cent.

4. Buildings which are inferior to those of class 3 with brick in mud plastered walls and mud floor and in which cheap country wood has been used.

4 per cent

Explanation. - (1) The depreciation shall be calculated for each year on the net value arrived at after deducting the amount of depreciation for the previous year.

(2)

The amount of depreciation shall in no case be less than ten per cent of the cost of the construction of the building.

(3)

The actual depreciation of a building aged 'n' years is calculated by using the formula -

$$P = A (100-r)^n / 100$$

Where A -total cost of construction of the building.

r - rate of depreciation per annum.

n - age of the building (i.e., the number of years).

P - the final depreciated value of the building.

The amount of depreciation will be equal to ('A'-P') subject to a minimum of ten per cent of 'A'].

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